



**153rd GENERAL ASSEMBLY  
FISCAL NOTE**

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| <b>BILL:</b>        | <b>SENATE BILL NO. 193</b>                                                                                                            |
| <b>SPONSOR:</b>     | <b>Senator Walsh</b>                                                                                                                  |
| <b>DESCRIPTION:</b> | <b>AN ACT TO AMEND TITLES 19 AND TITLE 29 OF THE DELAWARE CODE RELATING TO CRAFT TRAINING REQUIREMENTS IN PUBLIC WORKS CONTRACTS.</b> |

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**Assumptions:**

1. This Act becomes effective upon signature by the Governor.
2. This Act modifies compliance requirements for contractors on public works projects by eliminating the option for contractors to meet training requirements through payments to the Department of Labor (DOL) in lieu of participating in apprenticeship programs funded by the Department of Education (DOE). The DOL reports that for the last two fiscal years, less than 10% of all public works contracts/projects included contractors who used the payment options for compliance by paying into the Apprenticeship and Training Fund.
3. Elimination of the payment option will decrease revenue to the Apprenticeship and Training Fund (Fund), which will result in a revenue loss for DOL for administration of the Fund and apprenticeship outreach, and reduced payments to the DOE for Apprenticeship instruction.
4. A review of collections for this program over the last three years, provided by the DOL, shows that on average, \$85,940 has been collected annually. Of this amount, an average of \$58,439 has been provided to the DOE, with the remaining average of \$27,501 maintained by DOL. Therefore, a projected annual Appropriated Special Fund (ASF) revenue loss of \$27,501 and \$58,439 is estimated for the DOL and DOE, respectively.
5. The DOL estimates a one-time technology cost of \$25,000 for removal of the payment option and associated workflows in the department's reporting system.

**Cost:**

|                          | <b>One-Time<br/>General Fund</b> | <b>ASF Revenue Loss</b> |
|--------------------------|----------------------------------|-------------------------|
| <b>Fiscal Year 2027:</b> | \$25,000                         | \$85,940                |
| <b>Fiscal Year 2028:</b> |                                  | \$85,940                |
| <b>Fiscal Year 2029:</b> |                                  | \$85,940                |

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Prepared by Julie Fedele  
Office of the Controller General